

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 City of Norvale's Motion to Dismiss as Moot Filed May 15, 2026

The City of Norvale moves to dismiss this interlocutory appeal as moot because the February 14, 2026 fair that supplied the immediate basis for preliminary relief has occurred. The district court's January 23 order was entered against the backdrop of incomplete invitations and the approaching February event. That date passed while the injunction remained in effect. No author was excluded, no challenged speaker charge was collected for that fair, and the City imposed no disputed condition. The concrete controversy described in the preliminary record therefore no longer presents a live request for protection from an imminent February injury.

The City recognizes that the Guild announced additional dates. It submits, however, that the preliminary record did not establish a completed application, final roster, or denied amendment for any later fair. The April 11 fair also occurred without a disputed decision. The June, August, October, and December programs remain subject to changes in participants, reservations, traffic, and City administration. A court should not preserve interlocutory review merely to advise the parties how facts that have not matured might be evaluated.

The appeal concerns provisional relief rather than final adjudication of the complaint. The underlying constitutional claims remain pending in the District of South Carolina, where the parties may develop a full record and seek permanent relief. If the City applies the ordinance to a later event in a way that produces a concrete injury, the Guild may ask the district court to enforce, modify, or replace interim protection. The existence of that forum reduces any claim that dismissal would leave the Guild without a means to address a later dispute.

The City does not suggest that every challenge involving recurring conduct becomes moot after one date. The inquiry is whether the same complaining party faces a sufficiently concrete ongoing controversy and whether the challenged event is likely to recur in a form that evades review. Here, the injunction itself has governed the first two dates, the City has complied, and no evidence filed in this Court shows that a later application has been denied or conditioned. The operative dispute is therefore different from a policy that has already produced repeated completed enforcement actions.

The Guild's public calendar is not enough by itself. Each fair requires a separate application and decision because nearby uses, seasonal conditions, and the roster differ. A declaration that six dates were planned does not establish that every later event will include a late-added paid author or trigger the same alleged injury. The Guild might timely identify its speakers, use a different number of presentations, or reach agreement with staff on neutral logistical updates. Those possibilities make the claimed future injury contingent rather than imminent.

Nor does the continuing existence of the ordinance automatically preserve this interlocutory appeal. The district court can decide the facial and as-applied merits in the ordinary course. This Court's present jurisdiction arises from an injunction tied to a preliminary record. Once the immediate event has passed without the feared exclusion or fee, reviewing that provisional balance risks an advisory ruling on circumstances that may change before final judgment.

Dismissal would not validate the ordinance or vacate a final determination of constitutionality. The district court expressly made preliminary findings and retained the action. The parties could address the effect of appellate dismissal on the continuing injunction before that court. The City's motion asks only that this Court decline to decide an interlocutory controversy whose most immediate factual premise has expired.

If the Court concludes that later dates keep some dispute alive, it should at least require a current status submission identifying the June application, confirmed speakers, requested amendments, and any written City response. The appellate briefs rely mainly on the record that existed before January 23. A mootness determination should not assume that conditions remained static through May. Focused supplementation would show whether the dispute persists in the same form or whether the parties' administration has eliminated it.

That modest alternative would preserve an accurate jurisdictional record.

The City has conferred with the Guild, which opposes dismissal and maintains that all six dates form one recurring series. The City will respond promptly to any request for status materials and does not seek to delay merits disposition. It files now because jurisdiction must remain live throughout the appeal and because the passage of the identified February event is an objective development after the district record closed.

For these reasons, the Court should dismiss the interlocutory appeal as moot. Alternatively, it should order a short status submission before argument and decide whether a concrete dispute remains concerning the June 13 fair. The City does not ask the Court through this motion to decide the First Amendment merits, Rule 65 compliance, or the appropriate terms of any future district order.

Respectfully submitted May 15, 2026, by counsel for the City of Norvale. Counsel certifies electronic service on the Piedmont Booksellers Guild and states that the motion is based on the passage of the announced dates and the existing public docket, not on sealed or extra-record evidence.